

HCS HB 1788 -- CAMPAIGN FINANCE (Murphy)

COMMITTEE OF ORIGIN: Standing Committee on Elections

This bill requires all solicitations for campaign contributions to state, in a clear and conspicuous manner, the committee that will benefit from the contribution. The solicitation must also indicate what percentage of the contribution will be received by the committee, and any other entity that will receive any part of the contribution.

The bill allows the solicitation of automatically-recurring contributions only if the contributor gives affirmative consent for the recurring contribution. The passive action of a contributor, including but not limited to failing to uncheck a prechecked box, does not constitute affirmative consent.

This bill requires committees soliciting recurring contributions to provide receipts to the contributors, the contents of which are specified in the bill, and to immediately cancel the recurring contributions upon request.

Any committee that solicits and receives a contribution in violation of this bill must return the contribution to the donor immediately.

The bill allows the Missouri Ethics Commission to impose a civil penalty on a committee violating the provisions of this bill of up to 100 times the amount of the contribution received in violation of these provisions.

The bill requires recurring contributions to expire automatically after the election at which the candidate or measure benefiting from the contribution appears on the ballot. Recurring contributions made to a candidate who wins a primary election can continue until the general election.